

## 22SMCV02125 22SMCV02125

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-16

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Case Number: 22SMCV02125 Hearing Date: September 16, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE RULING

ARSALAN HAMIDI

vs.

BRETT GAGNON, et al.

Case

No.: 22SMCV02125

Related Case No.: 22STCV30718

Hearing Date: September 16, 2026

Plaintiff's

motion to enforce settlement and enter judgment is GRANTED.

On

10/25/2022, Plaintiff Arsalan Hamidi (Plaintiff) filed suit against Brett

Gagnon, George B. Gagnon, Geminon Properties, LLC, and Ashley R. Gagnon

(collectively, Defendants), alleging: (1) violation of Georgia Code section 14-11-313; (2) fraud; (3) negligent misrepresentation; (4) breach of operating agreement; (5) breach of operating agreement; (6) breach of fiduciary duties; (7) constructive fraud; (8) unjust enrichment; (9) conversion; (10) cessation/withdrawal of memberships and management; and (11) cancellation of written instruments.

On 6/15/2026,  
Plaintiff moved to enforce settlement and enter judgment.

The motion is  
unopposed.

Discussion

Plaintiff  
moves to enforce settlement and enter a judgment in the amount of \$165,871.46.

In  
support, Plaintiff submitted a copy of the Settlement Agreement and Stipulation for Entry of Judgment entered into by the parties. Plaintiff submitted evidence that in addition to repeatedly making untimely payments, Defendant has not made any monthly payments since 4/24/2026. Defendant is thus in material breach.

The  
Court takes Defendant's non-opposition to be a concession to the motion on the merits.

Based on the  
forgoing, Plaintiff's motion to enforce settlement and enter judgment is  
granted.

It is so ordered.

Dated: September  
, 2026

Hon. Jon R.  
Takasugi

Judge of the  
Superior Court

Parties who intend to submit on this tentative must send an email to the court at [smcdept17@lacourt.org](mailto:smcdept17@lacourt.org) by 4 p.m. the day prior as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.